



Criminal Appeal Act 1964

1964 CHAPTER 43

An Act to enable the Court of Criminal Appeal to order new trials in cases of fresh evidence; to make corresponding provision for new trials by court-martial; and for connected purposes. [10th June 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where an appeal against conviction is allowed by the Court of Criminal Appeal by reason only of evidence received or available to be received by that Court under section 9 of the Criminal Appeal Act 1907 and it appears to the Court that the interests of justice so require, the Court may, instead of directing the entry of a judgment and verdict of acquittal as required by section 4(2) of that Act, order the appellant to be retried.

(2) An appellant shall not be retried by virtue of this section for any offence other than—

- (a) the offence of which he was convicted at the original trial and in respect of which his appeal is allowed as aforesaid;
- (b) any offence of which he could have been convicted at the original trial on an indictment for the first-mentioned offence; or
- (c) any offence charged in an alternative count of the indictment in respect of which the jury were discharged from giving a verdict in consequence of convicting him of the first-mentioned offence.

2.—(1) An appellant who is to be retried for an offence in pursuance of an order under section 1 of this Act shall be tried upon a fresh indictment preferred by the direction of the Court

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Supplementary provisions as to new trials.

of Criminal Appeal, and shall be tried before such court as the Court of Criminal Appeal may direct (being a court of assize or, if the offence is within the jurisdiction of a court of quarter sessions, a court of quarter sessions) or, if no such direction is given, before the court by which he was originally tried.

(2) The Court of Criminal Appeal may, upon ordering a retrial under section 1 of this Act, make such orders as appear to the Court to be necessary or expedient for the custody or admission to bail of the appellant pending the retrial, or for the retention pending the retrial of any property or money forfeited, restored or paid by virtue of the original conviction or any order made on that conviction.

(3) Where a new trial is ordered under the said section 1 in the case of a person who, immediately before the determination of his appeal, was liable to be detained in pursuance of an order or direction under Part V of the Mental Health Act 1959, that order or direction shall continue in force pending the retrial as if the appeal had not been allowed and any order made by the Court of Criminal Appeal under this section for his custody or admission to bail shall have effect subject to the said order or direction.

(4) Section 1 of the Poor Prisoners' Defence Act 1930 shall apply in the case of an appellant who is to be retried by virtue of an order under section 1 of this Act as if he had been committed for trial for the offence or offences in question, and as if references in section 1(2) of that Act to the committing justices included references to the Court of Criminal Appeal; and if the appellant is acquitted on the retrial, the costs of the defence which may be ordered to be paid out of local funds under section 1 of the Costs in Criminal Cases Act 1952 shall include—

(a) any costs which could have been ordered to be so paid under that section by the court by which he was originally tried if he had been acquitted at the original trial; and

(b) if no order was made under section 3(2) or section 4 of that Act in respect of his expenses on appeal, any sums for the payment of which such an order could have been made.

(5) On a retrial ordered under section 1 of this Act, section 13(3) of the Criminal Justice Act 1925 (reading of depositions) shall not apply to the depositions of any person who gave evidence at the original trial; but a transcript of the shorthand notes of the evidence given by any witness at the original trial may, with the leave of the judge, be read as evidence—

(a) by agreement between the prosecution and the defence; or

(b) if the judge is satisfied that the witness is dead or unfit to give evidence or to attend for that purpose, or that all

reasonable efforts to find him or to secure his attendance have been made without success:

and in either case may be so read without further proof if verified in accordance with rules of court.

3.—(1) Where a person ordered to be retried under section 1 of this Act is again convicted on the retrial, the court before whom he is convicted may pass in respect of the offence any sentence authorised by law, not being a sentence of greater severity than that passed on the original conviction. Provisions as to sentence in case of conviction on retrial.

(2) Without prejudice to its power to impose any other sentence, the court before whom an offender is convicted on retrial may pass in respect of the offence any sentence passed in respect of that offence on the original conviction notwithstanding that, on the date of the conviction on retrial, the offender has ceased to be of an age at which such a sentence could otherwise be passed.

(3) Where the person convicted on retrial is sentenced to imprisonment or other detention, the sentence shall begin to run from the time when a like sentence passed at the original trial would have begun to run; but in computing the term of his sentence or the period for which he may be detained thereunder, as the case may be, there shall be disregarded—

(a) any time before his conviction on retrial which would have been disregarded in computing that term or period if the sentence had been passed at the original trial and the original conviction had not been quashed; and

(b) any time during which he was at large after being admitted to bail under section 2(2) of this Act.

(4) Section 17(2) of the Criminal Justice Administration Act 1962 (deduction from certain sentences of time in custody before sentence) shall apply to any sentence imposed on conviction on retrial as if it had been imposed on the original conviction.

4. The provisions of Schedule 1 to this Act shall have effect for authorising retrial by court-martial in cases of fresh evidence, and for the purposes of such retrials. Provisions as to retrial by court-martial.

5. The enactments specified in Schedule 2 to this Act shall have effect subject to the amendments set out in that Schedule, being amendments consequential on the foregoing provisions of this Act and minor amendments. Consequential and minor amendments.

6.—(1) This Act may be cited as the Criminal Appeal Act 1964. Short title, construction, extent and commencement.

(2) This Act, so far as it relates to appeals to and retrials ordered by the Court of Criminal Appeal, shall be construed as one with the Criminal Appeal Act 1907.

(3) This Act, so far as it relates to appeals from and retrials by courts-martial, shall be construed as one with Part I of the Courts-Martial (Appeals) Act 1951.

(4) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as extended or applied, by or under any other enactment, including this Act.

(5) This Act, except so far as it relates to appeals from and retrials by courts-martial, shall not extend to Scotland or Northern Ireland.

(6) This Act shall come into force on the date of the expiration of the period of one month beginning with the passing of this Act, and shall apply to convictions before as well as after that date.

SCHEDULES

SCHEDULE 1

PROVISIONS AS TO NEW TRIALS BY COURT-MARTIAL

1. Where an appeal against conviction is allowed by the Courts-Martial Appeal Court by reason only of evidence received or available to be received by that Court under section 8 of the Courts-Martial (Appeals) Act 1951 and it appears to the Court that the interests of justice so require, the Court may on quashing the conviction make an order authorising the appellant to be retried by court-martial.

2. An appellant shall not be retried under this Schedule for an offence other than—

- (a) the offence of which he was convicted at the original trial and in respect of which his appeal is allowed as aforesaid;
- (b) any offence of which he could have been convicted at the original trial on a charge of the first-mentioned offence; or
- (c) any offence charged in the alternative in respect of which the court-martial recorded no finding in consequence of convicting him of the first-mentioned offence.

3. A person authorised to be retried by court-martial under this Schedule shall not be so retried unless the order convening the court-martial is issued within the period of three months beginning with the date of the order authorising retrial, but subject as aforesaid he may be so retried notwithstanding—

- (a) the restrictions on retrial imposed by section 16 of the Courts-Martial (Appeals) Act 1951, section 134 of the Army Act 1955 and section 134 of the Air Force Act 1955;
- (b) the limitations imposed by section 52 of the Naval Discipline Act 1957, section 132 of the Army Act 1955 and section 132 of the Air Force Act 1955 with respect to the time within which a trial under those Acts respectively may be begun.

4. A person who is to be retried under this Schedule for any offence shall, if the Courts-Martial Appeal Court so directs, be retried on a fresh charge or charges specified in the direction, but whether he is so tried or is retried on one or more of the original charges no fresh investigation or other steps shall be taken under sections 76 to 79 of the Army Act 1955 or sections 76 to 79 of the Air Force Act 1955 in relation to the charge or charges on which he is to be retried.

5. The Courts-Martial Appeal Court may, where they authorise a retrial under this Schedule, make such orders as appear to the Court to be necessary or expedient for the retention until the relevant time of property or money which has been restored, delivered or paid in pursuance of an order made on or in consequence of the original conviction or has been placed in safe custody while the operation of any such order is suspended; and section 21 of the Courts-Martial (Appeals) Act 1951 (exercise of powers of the Court by a single judge) shall apply to the power of the Court to make orders under this paragraph and discharge or revoke such orders as it applies to the powers of the Court mentioned in paragraphs (a) to (d) of that section.

6. Where a new trial is authorised in the case of a person who immediately before the date of the authorisation was liable to be detained in pursuance of a direction under Part V of the Mental

SCH. 1 Health Act 1959, under Part V of the Mental Health (Scotland) Act 1960 or under Part III of the Mental Health Act (Northern Ireland) 1961 or any enactment of the Parliament of Northern Ireland amending or replacing the said Part III, that direction shall continue in force until the relevant time as if his conviction had not been quashed.

7. For the purposes of paragraphs 5 and 6 of this Schedule the relevant time is the expiration of the period of three months mentioned in paragraph 3 of this Schedule or, if during the said period of three months a court-martial has been convened for the retrial of an appellant, the time when his case is finally disposed of:

Provided that for the purposes of the said paragraph 5 the relevant time, in a case where the appellant is found guilty on the retrial, is the expiration of the period of twenty-eight days beginning with the date of the finding.

8. On the retrial of any person under this Schedule the record of the evidence given by any witness at the original trial may, with the leave of the court-martial, be read as evidence—

- (a) by agreement between the prosecution and the defence; or
- (b) if the court-martial is satisfied that the witness is dead or unfit to give evidence or to attend for that purpose, or that all reasonable efforts to find him or secure his attendance have been made without success, or that owing to the exigencies of the service it is not practicable for him to attend as aforesaid,

and may be so read without further proof if, in the case of a court-martial under the Naval Discipline Act 1957, it is produced from the custody of the Defence Council and, in the case of a court-martial under the Army Act 1955 or the Air Force Act 1955, it forms part of the original proceedings of the original court-martial or a copy thereof and those proceedings are, or that copy is, admissible as evidence under section 200 of the Army Act 1955 or section 200 of the Air Force Act 1955.

9. Where a person authorised to be retried under this Schedule is again convicted on the retrial, the court-martial by whom he is convicted may pass in respect of the offence any sentence authorised by the Naval Discipline Act 1957, the Army Act 1955 or the Air Force Act 1955, not being a sentence of greater severity than that passed on the original conviction.

10. Where a person authorised to be retried under this Schedule is convicted on retrial and sentenced to imprisonment or detention, there shall be taken into account in calculating the period for which he is liable to be imprisoned or detained in pursuance of that sentence—

- (a) any time before the original conviction was quashed which would have been taken into account in calculating the period for which he would have been liable to be imprisoned or detained in pursuance of a sentence of imprisonment or detention imposed at the original trial; and
- (b) any time after the quashing of his original conviction which he has spent under close arrest awaiting retrial.

11. The foregoing provisions of this Schedule, except so much of paragraph 5 as applies section 21 of the Courts-Martial (Appeals) Act 1951, shall apply with any necessary modifications in relation to—

- (a) the review by the Defence Council under section 70 of the Naval Discipline Act 1957 of the findings of a court-martial under that Act;

- (b) the review by Her Majesty or the Defence Council under section 113 of the Army Act 1955 of the findings of a court-martial under that Act;
- (c) the review by Her Majesty or the Defence Council under section 113 of the Air Force Act 1955 of the findings of a court-martial under that Act;

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as those provisions apply in relation to an appeal to the Courts-Martial Appeal Court.

12. Any document purporting to be an order or direction made or given by virtue of paragraph 11 of this Schedule by the Defence Council shall be evidence of the making of the order or the giving of the direction, as the case may be, and of its contents.

SCHEDULE 2

CONSEQUENTIAL AND MINOR AMENDMENTS

Enactment	Amendment
The Criminal Appeal Act 1907 7 Edw. 7. c. 23.	In section 17, after the word "bail" there shall be inserted the words "and the power of that Court to make orders under section 2(2) of the Criminal Appeal Act 1964, and discharge or vary such orders".
The Administration of Justice (Miscellaneous Provisions) Act 1933. 23 & 24 Geo. 5. c. 36.	In section 2(2)(b), after the word "preferred" there shall be inserted the words "by the direction of the Court of Criminal Appeal or".
The Courts-Martial (Appeals) Act 1951. 14 & 15 Geo. 6. c. 46.	In section 20(1), for the words from "the purposes of" to "section thirteen" there shall be substituted the words "all purposes other than those of subsections (1) and (3) of section 13 of this Act".
The Mental Health Act 1959 7 & 8 Eliz. 2. c. 72.	In section 73(2)(a), at the end there shall be inserted the words "and persons in custody pending a retrial ordered under section 1 of the Criminal Appeal Act 1964".
The Criminal Justice Administration Act 1962. 10 & 11 Eliz. 2. c. 15.	In section 18(1), the word "and", in the third place where that word occurs, shall be omitted, and at the end there shall be added the words "section 2(1) of the Criminal Appeal Act 1964".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Criminal Appeal Act 1907... ..	7 Edw. 7. c. 23.
Criminal Justice Act 1925... ..	15 & 16 Geo. 5. c. 86.
Poor Prisoners' Defence Act 1930... ..	20 & 21 Geo. 5. c. 32.
Administration of Justice (Miscellaneous Provisions) Act 1933... ..	23 & 24 Geo. 5. c. 36.
Courts-Martial (Appeal) Act 1951... ..	14 & 15 Geo. 6. c. 46.
Army Act 1955... ..	3 & 4 Eliz. 2. c. 18.
Air Force Act 1955... ..	3 & 4 Eliz. 2. c. 19.
Naval Discipline Act 1957... ..	5 & 6 Eliz. 2. c. 53.
Mental Health Act 1959... ..	7 & 8 Eliz. 2. c. 72.
Mental Health (Scotland) Act 1960... ..	8 & 9 Eliz. 2. c. 61.
Criminal Justice Administration Act 1962... ..	10 & 11 Eliz. 2. c. 15.